

24STCV06537 24STCV06537

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Case Number: 24STCV06537 Hearing Date: July 16, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

ELLEVIA SMITH,

vs.

MARTYN CROWN

AS TRUSTEE OF THE BERNARD SMITH LIVING TRUST DATED JUNE 14, 2007, AS AMENDED
AND RESTATED ON NOVEMBER 13, 2019, et al.

Case No.:

24STCV06537

Hearing Date: July 16, 2026

Defendant Samuel Weiner, as Trustee of the
Bernard Smith Living Trust dated June 14, 2007, as amended and restated on
November 13, 2019's motion for summary judgment of Plaintiff Ellevia Smith's first
complaint is granted.

Defendant Micah Kenneth Hubbell-Smith as
Special Administrator of the Estate of Bernard Smith's motion for summary

judgment of Plaintiff Ellevia Smith's first complaint is granted.

Defendant

Samuel Weiner, as Trustee of the Bernard Smith Living Trust dated June 14, 2007, as amended and restated on November 13, 2019 ("Weiner") ("Defendant") moves for summary judgment of Plaintiff Ellevia Smith's ("Smith") ("Plaintiff") first amended complaint ("FAC"). (Notice Motion Weiner, pgs. 1-2; C.C.P. §437c.) Defendant Weiner moves in the alternative for summary adjudication of Plaintiff's 1st, 2nd, 3rd, 4th, 5th, and 6th causes of action. (Notice Motion Weiner, pgs. 2-3; C.C.P. §437c.)

Defendant

Micah Kenneth Hubbell-Smith as Special Administrator of the Estate of Bernard Smith ("Micah") ("Defendant") moves for summary judgment of Plaintiff's FAC". (Notice Motion Micah, pgs. 1-2; C.C.P. §437c.) Defendant Micah moves in the alternative for summary adjudication of Plaintiff's 1st, 2nd, 3rd, 4th, 5th, and 6th causes of action. (Notice Motion Micah, pgs. 2-3; C.C.P. §437c.)

I.

Defendant Weiner's MSJ/MSA

Evidentiary

Objections

Plaintiff's

6/24/26 evidentiary objection to Defendant Weiner's 4/10/26 request for judicial notice is overruled.

Plaintiff's

6/24/26 evidentiary objections to the Declaration of Aaron J. Gigliotti ("Gigliotti") are sustained as to Nos. 2, 3, 4, 6, and overruled as to Nos. 5, 7, and 8.

Request

for Judicial Notice

Defendant

Weiner's 4/10/26 request for judicial notice of the Grant Deed recorded in the Los Angeles County Recorder's Office on May 24, 2019, as Document No. 20190482124 (DW-RJN, Exh. 1), is granted.

Legal
Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (C.C.P. §437c(c).)

In ruling on a motion for summary judgment, the court must "consider all of the evidence" and all of the "inferences" reasonably drawn therefrom (C.C.P. §437c(c)) and must view the evidence and inferences "in the light most favorable to the opposing party." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843; see Ragland v. U.S. Bank National Association (2012) 209 Cal.App.4th 182, 199.)

A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (C.C.P. §437c(f)(2).) A party may move for summary adjudication as to one or more causes of action within an action if that party contends that the cause of action has no merit or to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Civil Code §3294, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. (C.C.P. §437c(f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (C.C.P. §437c(f)(1).)

Discussion

Quiet
Title, Cancellation of Written Instrument, & Declaratory Relief (1st, 2nd, & 3rd COAs)

"In a quiet title action, plaintiff must prove her title and that this title is superior to the

claims of each party asserting an adverse interest.” (Pattera v. Hansen (2021) 64 Cal.App.5th 507, 534, emphasis omitted.)

To properly plead

a quiet title claim, a complaint must (1) be verified, (2) include both the legal and common descriptions of the property, (3) state the basis of plaintiff’s title, (4) state the adverse claims to plaintiff’s title against which a determination is sought, (5) state the date as of which the determination is sought, and (6) include a prayer for the determination of plaintiff’s title against the adverse claims. (See C.C.P. §761.020.)

When determining

the statute of limitations for a quiet title action, the defining factor is the applicable statute of limitations for the “underlying theory of relief.” (Muktarian v. Barmby (1965) 63 Cal.2d 558, 560, internal citations omitted; Salazar v. Thomas (2015) 236 Cal.App.4th 467, 476, as modified on denial of reh’g (May 28, 2015), internal citations omitted.)

When the

underlying theory of relief upon which the action for quiet title is based is for cancellation of instruments, the applicable statute of limitations is four years. (Kumar v. Ramsey (2021) 71 Cal.App.5th 1110, 1122 [holding an action for quiet title based upon an action for cancellation of instrument is bound by the four-year statute of limitations set forth in C.C.P. §343].)

“To prevail on a

claim to cancel an instrument, a plaintiff must allege and prove (1) the instrument is void or voidable, and (2) the plaintiff has a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of their position.” (Lauckhart v. El Macero Homeowners Assn. (2023) 92 Cal.App.5th 889, 900; Civ. Code §3412; see also Kroeker v. Hurlbert (1940) 38 Cal.App.2d 261, 266 [“In actions to cancel a certain instrument it is necessary for the complaint to state a case within the code sections for which reason it is essential to allege the facts affecting the validity and invalidity of the instrument which is attacked.”].)

Under the

discovery rule, accrual of the statute of limitations is postponed until the plaintiff

discovers, or has reason to discover, the factual basis for the claim. (Norgart v. Upjohn Co. (1999) 21 Cal.4th 383, 397-398; Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1110-1111; Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807-808.) Delayed discovery requires attention to the time and manner of discovery and the reasonableness of the plaintiff's diligence. (Fox, 35 Cal.4th at pg. 808; E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1318-1320.) "In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period." (Fox, 35 Cal.4th at pg. 809.)

Any person claiming rights with respect to property, a contract, or a written instrument (other than a will or trust) may bring an action for a declaration of the party's rights or duties with respect to another. The action may be brought before any breach occurs of the obligation regarding which the declaration of rights is sought. (C.C.P. §1060; Market Lofts Community Association v. 9th Street Market Lofts, LLC (2014) 222 Cal.App.4th 924, 931.) However, such declaratory relief requires the existence of an actual, present controversy between the parties over a proper subject. (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 79; Jenkins v. JP Morgan Chase Bank, N.A. (2013) 216 Cal.App.4th 497, 513-514.)

Plaintiff alleges

that her late son, Bernard Smith ("Bernard"), trustor of the Bernard Smith Living Trust dated June 14, 2007, as amended and restated on November 13, 2019 ("Trust"), wanted to ensure a secure future for his own son, Micah. (FAC 14.) Plaintiff alleges that, on May 29, 2019, Bernard used undue influence to convince his 88-year-old father and his mother to execute a grant deed for the real property commonly known as 2657 S. Harvard Boulevard, Los Angeles, California 90018 ("Subject Property") solely to the Trust in which Micah became the sole beneficiary. (See FAC ¶14.) Plaintiff alleges that during this time, her late husband, B. Winford Smith, had been contending with leukemia in a rehabilitation center and received an additional diagnosis of congestive heart failure. (See FAC ¶14.) Plaintiff alleges that during this time, she was emotionally and physically exhausted from caring for her ailing husband, with little capacity to handle complex legal or financial

matters. (FAC ¶15.)

Plaintiff alleges

that the wrongful transfer of the Property was discovered only in late 2022, just prior to the passing of Bernard. (FAC ¶21.)

Plaintiff alleges that this discovery occurred under circumstances where the Plaintiff, due to her advanced age, poor health, and the complexities surrounding her late husband's medical condition, was unaware that the Property had been transferred out of her name and into the Trust. (FAC ¶21.)

Plaintiff filed her initial complaint March 15, 2024.

Defendant

Weiner argues that the statute of limitations bars Plaintiff's claim because the Grant Deed at issue was executed April 23, 2019, recorded on May 24, 2019, and Plaintiff initiated her action on March 15, 2024, almost a year after the running of the four-year statute of limitations. (Motion Weiner, pgs. 6-7.) Defendant Weiner submitted undisputed evidence of the Grant Deed's execution by Plaintiff and her Husband B. Winford Smith to Bernard Smith, Trustee of the Bernard Smith Living Trust, UTD June 14, 2007, on April 23, 2019. (Defendant

Weiner's Undisputed Separate Statement of Fact ["DW-USSF"] No. 1; DW-RJN, Exh.

1.) Defendant Weiner submitted

undisputed evidence of Plaintiff's deposition testimony, wherein she states that the signature on the Grant Deed is hers, but that she does not remember signing the document. (DW-USSF No. 2;

DW-COE, Exh. C at 16:4-10 ["Q. [D]o you actually remember the day and signing the document? [¶] A. No."].) Defendant

Weiner submitted undisputed evidence that Plaintiff did not discuss the transfer of the Property with her husband or her son. (DW-USSF Nos. 6-7; DW-COE, Exh. C at 17:2-23.) Defendant Weiner met his

burden to demonstrate that the cause of action accrued on April 23, 2019, and was not tolled by the delayed discovery rule, shifting the burden to Plaintiff to raise a triable issue of material fact.

Plaintiff

fails to raise a triable issue of material fact as to whether the cause of action accrued on April 23, 2019, and was tolled by the delayed discovery rule. Plaintiff's FAC fails to allege facts

with specificity regarding the time and manner of discovery and Plaintiff's inability to have made earlier discovery despite reasonable diligence and does not provide evidentiary support for any inability to have made earlier discovery. (See E-Fab, Inc., 153

Cal.App.4th at pgs. 1323-1325.) “It is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it.” (Hulsey v. Elsinore Parachute Center (1985) 168 Cal.App.3d 333, 339.) Plaintiff’s failure to read the document that she signed at the instruction of her husband, had notarized, and then mailed back to Bernard to be recorded, only to discover the document years later while preparing tax documents provides no cognizable theory of delayed discovery. Plaintiff’s cause of action is barred by the statute of limitations.

Accordingly, Defendant Weiner’s motion for summary adjudication of the 1st, 2nd, and 3rd causes of action is granted.

Elder Abuse & Undue Influence (4th & 5th COAs)

Welfare & Institutions Code § 15610.30 defines “financial abuse” as follows:

(a) “Financial abuse” of an elder or dependent adult occurs when a person or entity does any of the following:

(1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70.

(b) A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates,

obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult.

(c) For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult.

(d) For purposes of this section,
“representative” means a person or entity that is either of the following:

(1) A conservator, trustee, or other representative of the estate of an elder or dependent adult.

(2) An attorney-in-fact of an elder or dependent adult who acts within the authority of the power of attorney.

(Welf. & Inst. Code §15610.30.)

Welfare & Institutions Code §15610.70
defines “undue influence” as follows:

(a) “Undue influence” means excessive persuasion that causes another person to act or refrain from acting by overcoming that person’s free will and results in inequity. In determining whether a result was produced by undue influence, all of the following shall be considered:

(1) The vulnerability of the victim. Evidence of vulnerability may include, but is not limited to, incapacity, illness, disability, injury, age, education, impaired cognitive function, emotional distress, isolation, or dependency, and whether the influencer knew or should have known of the alleged victim’s vulnerability.

(2) The influencer’s apparent authority. Evidence of apparent authority may include, but is not limited to, status as a fiduciary, family member, care provider, health care professional, legal professional, spiritual adviser, expert, or other qualification.

(3) The actions or tactics used by the influencer. Evidence of actions or tactics used may include, but is not limited to, all of the following:

(A)

Controlling

necessaries of life, medication, the victim's interactions with others, access to information, or sleep.

(B)

Use of

affection, intimidation, or coercion.

(C)

Initiation

of changes in personal or property rights, use of haste or secrecy in effecting those changes, effecting changes at inappropriate times and places, and claims of expertise in effecting changes.

(4) The equity of the result. Evidence of the equity of the result may include, but is not limited to, the economic consequences to the victim, any divergence from the victim's prior intent or course of conduct or dealing, the relationship of the value conveyed to the value of any services or consideration received, or the appropriateness of the change in light of the length and nature of the relationship.

(b) Evidence of an inequitable result, without more, is not sufficient to prove undue influence.

(Welf. & Inst. Code §15610.70.)

The statutory period for a plaintiff to bring a claim for financial elder abuse is four years after the plaintiff "through the exercise of reasonable diligence, should have discovered, the facts constituting the financial abuse." (Welf. & Inst. Code §15657.7.)

Defendant Weiner argues that the statute of limitations bars Plaintiff's claim because the Grant Deed at issue was executed

April 23, 2019, recorded on May 24, 2019, and Plaintiff initiated her action on March 15, 2024, almost a year after the running of the four-year statute of limitations. (Motion Weiner, pgs.

6-7.) Defendant Weiner submitted

undisputed evidence of the Grant Deed's execution by Plaintiff and her Husband B. Winford Smith to Bernard Smith, Trustee of the Bernard Smith Living Trust, UTD June 14, 2007, on April 23, 2019.

(DW-USSF No. 1; DW-RJN, Exh. 1.)

Defendant Weiner submitted undisputed evidence of Plaintiff's deposition testimony, wherein she states that the signature on the Grant Deed is hers, but that she does not remember signing the document. (DW-USSF No. 2; DW-COE, Exh. C at 16:4-10.) Defendant Weiner submitted

undisputed evidence that Plaintiff did not discuss the transfer of the Property with her husband or her son. (DW-USSF Nos. 6-7; DW-COE, Exh. C at 17:2-23.)

Defendant Weiner met his burden to demonstrate that the cause of action accrued on April 23, 2019, and was not tolled by the delayed discovery rule, shifting the burden to Plaintiff to raise a triable issue of material fact.

Plaintiff

fails to raise a triable issue of material fact as to whether the cause of action accrued on April 23, 2019, and was tolled by the delayed discovery rule. Plaintiff's FAC fails to allege

facts with specificity regarding the time and manner of discovery and Plaintiff's inability to have made earlier discovery despite reasonable diligence and does not provide evidentiary support for any inability to have made earlier discovery. (See E-Fab, Inc., 153 Cal.App.4th at pgs. 1323-1325.)

"It is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it." (Hulsey v. Elsinore Parachute Center (1985) 168 Cal.App.3d 333, 339.)

Plaintiff's failure to read the document that she signed at the instruction of her husband, had notarized, and then mailed back to Bernard to be recorded, only to discover the document years later while preparing tax documents provides no cognizable theory of delayed discovery. Plaintiff's cause of action is barred by the statute of limitations.

Accordingly, Defendant's motion for summary

adjudication of the 4th and 5th causes of action is granted.

Resulting

Trust (6th COA)

"A resulting trust arises by operation of law from a transfer of property under circumstances showing that the transferee was not intended to take the beneficial interest. [Citations.] Such a resulting trust carries out and enforces the inferred intent of the parties. [Citations.] 'Ordinarily a resulting trust arises in favor of the payor of the purchase price of the property where the purchase price, or a part thereof, is paid by one person and the title is taken in the name of another. [Citations.] 'The trust arises because it is the natural presumption in such a case that it was their intention that the ostensible purchaser should acquire and hold the property for the one with whose means it was acquired.' [Citations.]" (Lloyds Bank California v. Wells Fargo Bank (1986) 187 Cal.App.3d 1038, 1042-1043, 232 Cal.Rptr. 339.) In other words, the relationship between resulting trustee and beneficiary arises where one, in good faith, acquires title to property belonging to another. The law implies an obligation on the part of the one in whom title has vested to hold the property for the owner's benefit and eventually convey it to the owner. The trustee has no duties to perform, no trust to administer, and no purpose to pursue except the single purpose of holding or conveying the property according to the beneficiary's demands." (Bainbridge v. Stoner (1940) 16 Cal.2d 423, 428, 106 P.2d 423.)

"The applicable statute of limitations on an action to establish a resulting trust is the four-year statute found in Code of Civil Procedure section 343. (McCosker v. McCosker (1954) 122 Cal.App.2d 498, 501, 265 P.2d 21.) The statute of limitations does not begin to run against a voluntary resulting trust in the absence of repudiation by the trustee, that is, until demand has been made upon the trustee and the trustee refuses to account or convey." (Berniker v. Berniker (1947) 30 Cal.2d 439, 447-448, 182 P.2d 557.)

(Estate of Yool (2007) 151 Cal.App.4th 867, 874-875.)

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"It is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it." (Hulsey v. Elsinore Parachute Center (1985) 168 Cal.App.3d 333, 339.)

Plaintiff's failure to read the document that she signed at the instruction of her husband, had notarized, and then mailed back to Bernard to be recorded, only to discover the document years later while preparing tax documents provides no cognizable theory of delayed discovery. Plaintiff's cause of action is barred by the statute of limitations.

Accordingly, Defendant Weiner's motion for

summary adjudication of the 6th cause of action is granted.

Conclusion

Defendant Weiner's motion for summary judgment is granted.

Moving

Party to give notice.

II.

Defendant Hubbell-Smith's
MSJ/MSA

Evidentiary

Objections

Defendant

Micah's 7/2/26 evidentiary objection to the Bernard Smith 2017 Memo (P-COE, Exh. 4) is sustained as inadmissible hearsay.

Defendant

Micah's 7/2/26 evidentiary objection to the Bernard Smith October 18, 2022, Texts- Set One (P-COE, Exh. 5) is sustained as inadmissible hearsay.

Defendant

Micah's 7/2/26 evidentiary objection to the Bernard Smith October 18, 2022, Texts- Duplicate/Cleaner Sets (P-COE, Exh. 6) is sustained as inadmissible hearsay.

Defendant

Micah's 7/2/26 evidentiary objection to Plaintiff's Deposition (P-COE, Exh. 7) is overruled.

Defendant

Micah's 7/2/26 evidentiary objection to Plaintiff's Deposition (P-COE, Exh. 8) is overruled.

Defendant

Micah's 7/2/26 evidentiary objection to Plaintiff's Deposition (P-COE, Exh. 9)

is overruled.

Defendant

Micah's 7/2/26 evidentiary objection to Plaintiff's Deposition (P-COE, Exh. 10) is overruled.

Defendant

Micah's 7/2/26 evidentiary objection to the February 7, 2019, Physician Certificate (P-COE, Exh. 11) is sustained for lack of foundation and inadmissible hearsay.

Defendant

Micah's 7/2/26 evidentiary objection to the March 6, 2019, Physician Certificate (P-COE, Exh. 12) is sustained for lack of foundation and inadmissible hearsay.

Defendant

Micah's 7/2/26 evidentiary objection to the Medical Corroboration (P-COE, Exh. 13) is sustained for lack of foundation and inadmissible hearsay.

Request

for Judicial Notice

Defendant

Micah's 4/15/26 request for judicial notice of the Grant Deed recorded in the Los Angeles County Recorder's Office on May 24, 2019, as Document No. 20190482124 (DM-RJN, Exh. 1), is granted.

Legal

Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (C.C.P. §437c(c).)

In ruling on a motion for summary judgment, the court must "consider all of the evidence" and all of the "inferences" reasonably drawn therefrom (C.C.P. §437c(c)) and must view the evidence and inferences "in the light most favorable to the opposing party." (Aguilar

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Discussion

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Title, Cancellation of Written Instrument, & Declaratory Relief (1st, 2nd, & 3rd COAs)

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action, plaintiff must prove her title and that this title is superior to the claims of each party asserting an adverse interest.” (Pattera v. Hansen (2021) 64 Cal.App.5th 507, 534, emphasis omitted.)

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a quiet title claim, a complaint must (1) be verified, (2) include both the legal and common descriptions of the property, (3) state the basis of plaintiff’s title, (4) state the adverse claims to plaintiff’s title against which a determination is sought, (5) state the date as of which the determination is sought, and (6) include a prayer for the determination of plaintiff’s title against the adverse claims. (See C.C.P. §761.020.)

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the statute of limitations for a quiet title action, the defining factor is the applicable statute of limitations for the “underlying theory of relief.” (Muktarian v. Barmby (1965) 63 Cal.2d 558, 560, internal citations omitted; Salazar v. Thomas (2015) 236 Cal.App.4th 467, 476, as modified on denial of reh’g (May 28, 2015), internal

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contract, or a written instrument (other than a will or trust) may bring an action for a declaration of the party’s rights or duties with respect to

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Plaintiff alleges

that her late son, Bernard Smith ("Bernard"), trustor of the Bernard Smith Living Trust dated June 14, 2007, as amended and restated on November 13, 2019 ("Trust"), wanted to ensure a secure future for Defendant Micah. (FAC 14.) Plaintiff alleges that for this reason, in spring of 2019, Bernard used undue influence convinced his elderly parents who were 88 to effectuate the granting of the deed executed on May 29, 2019, for real property commonly known as 2657 S. Harvard Boulevard, Los Angeles, California 90018 ("Subject Property") solely to the Trust in which Defendant Micah became the sole beneficiary. (See FAC ¶14.) Plaintiff alleges that during this time, her late husband, B. Winford Smith, had been contending with leukemia in a rehabilitation center and received an additional diagnosis of congestive heart failure. (See FAC ¶14.) Plaintiff alleges that during this time, she was similarly advanced in age, was emotionally and physically exhausted from caring for her ailing husband, with little capacity to handle complex legal or financial matters. (FAC ¶15.)

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that the wrongful transfer of the Property was discovered only in late 2022, just prior to the passing of Bernard. (FAC ¶21.) Plaintiff alleges that this discovery occurred under circumstances where the Plaintiff, due to her advanced age, poor health, and the complexities surrounding her late husband's medical condition, was unaware that the Property had been transferred out of her name and into the Trust. (FAC ¶21.) Plaintiff filed her initial complaint March 15, 2024.

Defendant

Micah argues that the statute of limitations bars Plaintiff's claim because the Grant Deed at issue was executed April 23, 2019, recorded on May 24, 2019, and Plaintiff initiated her action on March 15, 2024, almost a year after the

running of the four-year statute of limitations. (Motion Micah, pgs. 4-5.) Defendant Micah submitted undisputed evidence of the Grant Deed's execution by Plaintiff and her Husband B. Winford Smith to Bernard Smith, Trustee of the Bernard Smith Living Trust, UTD June 14, 2007, on April 23, 2019. (Defendant Micah's Undisputed Separate Statement of Fact ["DM-USSF"] No. 1; DM-RJN, Exh. 1.) Defendant Micah submitted undisputed evidence of Plaintiff's deposition testimony, wherein she states that the signature on the Grant Deed is hers, but that she does not remember signing the document. (DM-USSF No. 2; DM-COE, Exh. C at 16:4-10 ["Q. [D]o you actually remember the day and signing the document? [¶] A. No."].) Defendant Micah submitted undisputed evidence that Plaintiff did not discuss the transfer of the Property with her husband or her son. (DM-USSF Nos. 6-7; DM-COE, Exh. C at 17:2-23.) Defendant Micah met his burden to demonstrate that the cause of action accrued on April 23, 2019, and was not tolled by the delayed discovery rule, shifting the burden to Plaintiff to raise a triable issue of material fact.

Plaintiff

fails to raise a triable issue of material fact as to whether the cause of action accrued on April 23, 2019, and was tolled by the delayed discovery rule. Plaintiff's FAC fails to allege facts with specificity regarding the time and manner of discovery and Plaintiff's inability to have made earlier discovery despite reasonable diligence and does not provide evidentiary support for any inability to have made earlier discovery. (See E-Fab, Inc., 153 Cal.App.4th at pgs. 1323-1325.) "It is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it." (Hulsey v. Elsinore Parachute Center (1985) 168 Cal.App.3d 333, 339.) Plaintiff's failure to read the document that she signed at the instruction of her husband, had notarized, and then mailed back to Bernard to be recorded, only to discover the document years later while preparing tax documents provides no cognizable theory of delayed discovery. Plaintiff's cause of action is barred by the statute of limitations.

Accordingly,

Defendant Micah's motion for summary adjudication of the 1st, 2nd, and 3rd

causes of action is granted.

Elder

Abuse & Undue Influence (4th & 5th COAs)

Welfare & Institutions Code § 15610.30

defines "financial abuse" as follows:

(e) "Financial abuse" of an elder or dependent adult occurs when a person or entity does any of the following:

(1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70.

(f) A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult.

(g) For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult.

(h) For purposes of this section, "representative" means a person or entity that is either of the following:

(1) A conservator, trustee, or other representative of the estate of an elder or dependent adult.

(2) An attorney-in-fact of an elder or dependent adult who acts within the authority of the power of attorney.

(Welf. & Inst. Code §15610.30.)

Welfare & Institutions Code §15610.70
defines "undue influence" as follows:

(c) "Undue influence" means excessive persuasion that causes another person to act or refrain from acting by overcoming that person's free will and results in inequity. In determining whether a result was produced by undue influence, all of the following shall be considered:

(1) The vulnerability of the victim. Evidence of vulnerability may include, but is not limited to, incapacity, illness, disability, injury, age, education, impaired cognitive function, emotional distress, isolation, or dependency, and whether the influencer knew or should have known of the alleged victim's vulnerability.

(2) The influencer's apparent authority. Evidence of apparent authority may include, but is not limited to, status as a fiduciary, family member, care provider, health care professional, legal professional, spiritual adviser, expert, or other qualification.

(3) The actions or tactics used by the influencer. Evidence of actions or tactics used may include, but is not limited to, all of the following:

(A)
Controlling necessities of life, medication, the victim's interactions with others, access to information, or sleep.

(B)
Use of affection, intimidation, or coercion.

(C)

Initiation

of changes in personal or property rights, use of haste or secrecy in effecting those changes, effecting changes at inappropriate times and places, and claims of expertise in effecting changes.

(4) The equity of the result. Evidence of the equity of the result may include, but is not limited to, the economic consequences to the victim, any divergence from the victim's prior intent or course of conduct or dealing, the relationship of the value conveyed to the value of any services or consideration received, or the appropriateness of the change in light of the length and nature of the relationship.

(d) Evidence of an inequitable result, without more, is not sufficient to prove undue influence.

(Welf. & Inst. Code §15610.70.)

The statutory period for a plaintiff to bring a claim for financial elder abuse is four years after the plaintiff “through the exercise of reasonable diligence, should have discovered, the facts constituting the financial abuse.” (Welf. & Inst. Code §15657.7.)

Defendant Micah argues that the statute of limitations bars Plaintiff's claim because the Grant Deed at issue was executed April 23, 2019, recorded on May 24, 2019, and Plaintiff initiated her action on March 15, 2024, almost a year after the running of the four-year statute of limitations. (Motion Micah, pg. 6.) Defendant Micah submitted undisputed evidence of the Grant Deed's execution by Plaintiff and her Husband B. Winford Smith to Bernard Smith, Trustee of the Bernard Smith Living Trust, UTD June 14, 2007, on April 23, 2019. (DM-USSF No. 1; DM-RJN, Exh. 1.) Defendant Micah submitted undisputed evidence of Plaintiff's deposition testimony, wherein she states that the signature on the Grant Deed is hers, but that she does not remember signing the document. (DM-USSF No. 2; DM-COE, Exh. C at 16:4-10.) Defendant Micah submitted undisputed evidence that Plaintiff did not discuss the transfer of the Property with her husband or her son.

(DM-USSF Nos. 6-7; DM-COE, Exh. C at 17:2-23.) Defendant Micah met his burden to demonstrate that the cause of action accrued on April 23, 2019, and was not tolled by the delayed discovery rule, shifting the burden to Plaintiff to raise a triable issue of material fact.

Plaintiff

fails to raise a triable issue of material fact as to whether the cause of action accrued on April 23, 2019, and was tolled by the delayed discovery rule. Plaintiff's FAC fails to allege facts with specificity regarding the time and manner of discovery and Plaintiff's inability to have made earlier discovery despite reasonable diligence and does not provide evidentiary support for any inability to have made earlier discovery. (See E-Fab, Inc., 153 Cal.App.4th at pgs. 1323-1325.)

"It is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it." (Hulsey v. Elsinore Parachute Center (1985) 168 Cal.App.3d 333, 339.)

Plaintiff's failure to read the document that she signed at the instruction of her husband, had notarized, and then mailed back to Bernard to be recorded, only to discover the document years later while preparing tax documents provides no cognizable theory of delayed discovery. Plaintiff's cause of action is barred by the statute of limitations.

Accordingly, Defendant Micah's motion for summary adjudication of the 4th and 5th causes of action is granted.

Resulting

Trust (6th COA)

"A resulting trust arises by operation of law from a transfer of property under circumstances showing that the transferee was not intended to take the beneficial interest. [Citations.] Such a resulting trust carries out and enforces the inferred intent of the parties. [Citations.] 'Ordinarily a resulting trust arises in favor of the payor of the purchase price of the property where the purchase price, or a part thereof, is paid by one person and the title is taken in the name of another. [Citations.] 'The trust arises because it is the natural presumption in such a case that it was their intention that the ostensible purchaser should acquire

and hold the property for the one with whose means it was acquired.” [Citations.]” (Lloyds Bank California v. Wells Fargo Bank (1986) 187 Cal.App.3d 1038, 1042-1043, 232 Cal.Rptr. 339.) In other words, the relationship between resulting trustee and beneficiary arises where one, in good faith, acquires title to property belonging to another. The law implies an obligation on the part of the one in whom title has vested to hold the property for the owner's benefit and eventually convey it to the owner. The trustee has no duties to perform, no trust to administer, and no purpose to pursue except the single purpose of holding or conveying the property according to the beneficiary's demands.” (Bainbridge v. Stoner (1940) 16 Cal.2d 423, 428, 106 P.2d 423.)

“The applicable statute of limitations on an action to establish a resulting trust is the four-year statute found in Code of Civil Procedure section 343. (McCosker v. McCosker (1954) 122 Cal.App.2d 498, 501, 265 P.2d 21.) The statute of limitations does not begin to run against a voluntary resulting trust in the absence of repudiation by the trustee, that is, until demand has been made upon the trustee and the trustee refuses to account or convey.” (Berniker v. Berniker (1947) 30 Cal.2d 439, 447-448, 182 P.2d 557.)

(Estate of Yool (2007) 151 Cal.App.4th 867, 874-875.)

Defendant Micah argues that the statute of limitations bars Plaintiff's claim because the Grant Deed at issue was executed April 23, 2019, recorded on May 24, 2019, and Plaintiff initiated her action on March 15, 2024, almost a year after the running of the four-year statute of limitations. (Motion Micah, pg. 6.) Defendant Micah submitted undisputed evidence of the Grant Deed's execution by Plaintiff and her Husband B. Winford Smith to Bernard Smith, Trustee of the Bernard Smith Living Trust, UTD June 14, 2007, on April 23, 2019. (DM-USSF No. 1; DM-RJN, Exh. 1.) Defendant Micah submitted undisputed evidence of Plaintiff's deposition testimony, wherein she states that the signature on the Grant Deed is hers, but that she does not remember signing the document. (DM-USSF No. 2; DM-COE, Exh. C at 16:4-10.) Defendant Micah submitted undisputed evidence that Plaintiff did not discuss the transfer of the Property with her husband or her son. (DM-USSF Nos. 6-7; DM-COE, Exh. C at 17:2-23.) Defendant Micah met his burden to demonstrate

that the cause of action accrued on April 23, 2019, and was not tolled by the delayed discovery rule, shifting the burden to Plaintiff to raise a triable issue of material fact.

Plaintiff

fails to raise a triable issue of material fact as to whether the cause of action accrued on April 23, 2019, and was tolled by the delayed discovery rule. Plaintiff's FAC fails to allege

facts with specificity regarding the time and manner of discovery and Plaintiff's inability to have made earlier discovery despite reasonable diligence and does not provide evidentiary support for any inability to have made earlier discovery. (See E-Fab, Inc., 153 Cal.App.4th at pgs. 1323-1325.)

"It is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it." (Hulsey v. Elsinore Parachute Center (1985) 168 Cal.App.3d 333, 339.)

Plaintiff's failure to read the document that she signed at the instruction of her husband, had notarized, and then mailed back to Bernard to be recorded, only to discover the document years later while preparing tax documents provides no cognizable theory of delayed discovery. Plaintiff's cause of action is barred by the statute of limitations.

Accordingly, Defendant Micah's motion for summary adjudication of the 6th cause of action is granted.

Conclusion

Defendant Micah's motion for summary judgment is granted.

Moving

Party to give notice.

Dated: July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court